

Court No. - 40

Case :- WRIT - C No. - 31760 of 2014

Petitioner :- M/S Raja Ram Ispat Private Ltd.

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Arvind Agrawal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ram Surat Ram (Maurya),J.

The petitioner has approached this Court seeking a mandamus commanding the respondents to take appropriate action and correct the bill of the petitioner's unit showing the dues Rs.1,45,86,024/- and further to provide benefits of rebate of sick unit in accordance with law by reducing the penalty and other charges imposed upon him.

The learned counsel for the petitioner submits that permanent disconnection was done on 25.11.2013 and at that time bill of the petitioner was of Rs.78,05,508/- which was raised to almost double within six months.

We find that under Clause 6.5.(b) of U.P.Electricity Supply Code, 2005, the Executive Engineer has been given power for resolving the disputes regarding accuracy of the bills. Accordingly, the petitioner has a remedy by approaching the authority concerned making a complaint/representation with regard to accuracy of the bill. Since the question in issue involves an adjudication on question of fact and the petitioner has a remedy to approach the authority concerned, we find it appropriate that the same may be availed.

Considering the facts and circumstances of the case, the writ petition is disposed of with the direction to the petitioner to make a representation/complaint before the appropriate authority under Clause- 6.5. of U.P. Electricity Supply Code, 2005, who shall consider and decide the same by a reasoned and speaking order in accordance with law, expeditiously.

Order Date :- 2.6.2014

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